



United States
Attorney's Office
Southern District of West Virginia



Beckley Medical Clinic and Physician Agree to Pay \$152,382.70 to Resolve False Claims Act Allegations

Wednesday, April 2, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of
West Virginia

CHARLESTON, W.Va. – Acting United States Attorney Lisa G. Johnston announced today that Med-Surg Physician Group Inc. and its owner Oluyemisi Sangodeyi, M.D., have agreed to pay the United States \$152,382.70 to resolve civil allegations that they violated the federal False Claims Act by submitting false claims for payment to Medicare and Medicaid and falsely certifying compliance with program requirements.

Med-Surg Physician Group, Inc. (Med-Surg) is a medical practice based in Beckley, West Virginia, providing both general internal medicine services as well as medication assisted treatment (MAT) for substance use disorder. Analysis of Med-Surg's Medicare and Medicaid claims revealed an unusual billing pattern for Healthcare Common Procedure Coding System (HCPCS) procedure code Q3014 (telehealth originating site facility fee). This billing code is intended to allow an enrolled facility where a patient is physically located to recoup costs associated with connecting the patient in the facility with an outside provider such as a specialist for telehealth services. Federal regulations specify that "only the originating site may bill for the originating site facility fee."

After conducting patient interviews, investigators determined that Med-Surg was regularly billing procedure code Q3014 for telehealth visits where the patient was at home, in violation of federal law and regulations that specify that the facility fee is not payable where the patient's originating site is their home. The policy manual for the West Virginia Bureau for Medical Services (BMS), the designated single state agency responsible for the administration of West Virginia's Medicaid program, states plainly "the provider may not bill originating site code when the originating site is the home of the member." In addition, a clarifying letter was issued by BMS Commissioner Cynthia Beane on March 16, 2020, specifying "there will be no reimbursement for the originating site of the members home (Q3014)."

Despite the clear requirements of the statutes, regulations, and policy guidance, between March 25, 2020, and January 27, 2021, Med-Surg routinely added the Q3014 billing code when submitting claims to Medicare and Medicaid for telehealth visits. During the relevant time period, Med-Surg received a total of \$76,191.35 from Medicare and Medicaid as a result of this inappropriate billing.

"Dr. Sangodeyi and Med-Surg repeatedly billed for fees they knew they were not entitled to, at the expense of the American taxpayer," said Acting United States Attorney Lisa G. Johnston. "The resolution of this matter is the result of the outstanding investigative work of the U.S. Department of Health and Human Services-Office of the Inspector General (HHS-OIG) and the West Virginia Attorney General's Medicaid Fraud Control Unit (MFCU), in collaboration with the United States Attorney's Health Care Fraud Task Force. I also commend our office's Affirmative Civil Enforcement and Health Care Fraud Investigative Specialist, Tyler E. Japhet, for assisting the investigation and Assistant United States Attorney Gregory P. Neil for securing the settlement announced today."

"Accurately submitting claims for reimbursement from the Medicare and Medicaid Program is required of all health care providers," said Maureen R. Dixon, Special Agent in Charge for the U.S. Department of Health and Human Services, Office of the Inspector General. "HHS-OIG and the U.S. Attorney's Office will continue to evaluate and pursue allegations of fraud in federal health care programs."

"We are committed to ensuring money for Medicare and Medicaid is used for its intended purpose," said West Virginia Attorney General JB McCuskey. "Many people rely on these programs and we, with our partners, will continue to work to protect taxpayer dollars."

The United States Attorney's Health Care Fraud Task Force brings together federal, state, and local law enforcement partners from numerous agencies to coordinate intelligence sharing and prosecution of health care fraud impacting Medicare, Medicaid, and other public health care programs.

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